

TERMS AND CONDITIONS – TALENT PARTNER

Talent Socio Bizcon LLP (“**Talent Socio**”) owns and operates an online talent partner network (“**Talent Partner Network**”) to facilitate recruitment transactions between Talent Socio’s existing clients or business partners with active hiring requirements (“**Clients**”) and companies/agencies/individuals that assist Talent Socio in fulfilling the hiring requirements of such Clients (“**Talent Partners**”) (hereinafter referred to as the “**Services**”).

These Terms and Conditions (“**Terms**”) set forth the terms and conditions under which Talent Socio offers the Services to the Talent Partners on the Talent Partner Network and use of such Services by the Talent Partners. For the purpose of these Terms, Talent Partner and Talent Socio are individually referred to as a “Party” and collectively as “Parties”.

These Terms are an electronic record as per the Information Technology Act, 2000 (“IT Act”) and rules as applicable, and the amended provisions pertaining to electronic records in various statutes, as amended by the IT Act and are published in accordance with the provisions of Rule 4 of the Information Technology (Reasonable Security Practices and Sensitive Personal Data or Information) Rules, 2011. This electronic record is generated by a computer system and does not require any physical or digital signatures.

Talent Socio urges the Talent Partners to read and understand these Terms carefully for the details on the way of using the Services on the Talent Partner Network. The Talent Partner is required to review and understand these Terms and other rules and regulations imposed by the applicable law from time to time before availing the Services on the Talent Partner Network.

Supersession: These Terms supersede and replace, in their entirety, any and all prior agreements, arrangements, understandings, terms and conditions or correspondence, whether written or oral, entered into or exchanged between Talent Socio (including any of its affiliates) and the Talent Partner at any time prior to the effective date of these Terms, in relation to the subject matter contained herein. Upon acceptance of these Terms, all such prior agreements shall stand terminated and shall be of no further force or effect, without prejudice to any rights or obligations already accrued thereunder.

1. Talent Partner engagement process:

- i. **Requirements:** Talent Socio's Account Manager(s) shall share and allocate job requirements, sourced from Talent Socio's existing Clients or business partners, with Talent Partners through the Talent Partner Network platform.
- ii. **Assignment of Requirements to Talent Partners:** Jobs shall be assigned to Talent Partners based on the Talent Partner's profile data, past performance on similar requirements, and the Client's specifications, as determined by the Account Manager or Admin of Talent Socio.
- iii. **Claiming of Requirements:** In addition to requirements allocated to them, a Talent Partner may independently express interest in and claim a requirement of their choice that is available on the Talent Partner Network. Any such claim shall be subject to review and approval by the Account Manager or Admin of Talent Socio, at their sole

discretion, and the Talent Partner shall not commence work on the claimed requirement until such approval is granted. Talent Socio shall provide the Talent Partner with the discretion to search for requirements of their choice, and while accepting, claiming, or opting in for a requirement, the Talent Partner shall be deemed to have agreed to the Possible Payout Amount applicable for each position, along with related terms including the payment term and the Replacement Period, as set out in Clause 3 below.

- iv. Transactions:** In case the Talent Partner has details and consent of candidates that match the requirement of a Client, the Talent Partner may respond to the requirements posted on the Talent Partner Network with candidate profiles. On preliminary review of the details shared, the Account manager may or may not contact the Talent Partner for further details and proceed with the recruitment process of the candidate. The Client may choose to contact the candidate either directly or via the Talent Partner.
- v. Coordination:** Talent Socio shall assign Account Managers to deal with, negotiate, and mediate all transactions to ensure smooth functioning of the transactions on the Talent Partner Network. The Talent Partner shall be responsible for all communications and/or intimations from the candidate to the Client and vice versa.

2. Talent Partner Performance, Ethical Conduct and Talent Socio Oversight:

Talent Socio's Clients share their requirements directly on the Talent Partner Network, and the Talent Partners shall ensure to abide by certain professional expectations of the Clients. The Talent Partner shall endeavour to deliver high quality services within a reasonable time. The Talent Partners shall be required to abide by the following minimum expectations:

- i. Genuine transactions:** The Talent Partner shall ensure that the candidate information shared by the Talent Partner on the Talent Partner Network is entirely genuine, verified by the Talent Partner at the relevant time of sharing the information, and that prior consent has been obtained from the candidate to pursue candidature for any specific requirement posted on the Talent Partner Network. In this regard, the Talent Partner shall obtain from the candidates the following consents:
 - a.** consent for Processing of the candidate's personal information for the purposes of rendering the Services;
 - b.** consent for sharing their information with third parties for Processing as per the Data Processing Annexure;
 - c.** consent for storing their personal information for submitting their application for further opportunities opening within a period of 6 (six) months from the date of submission of personal information by the respective candidate.
- ii.** The Talent Partner shall not engage or subcontract the roles ahead to any third party/freelancer to help source candidates for roles that they accept on the Talent Partner Network. The Talent Partner shall ensure that candidates are sourced only by employees of the Talent Partner himself/herself or its FT employees in case talent partner here is an organization.

- iii. **Relevant candidates:** The Talent Partner shall ensure that it shares the most suitable and highly relevant candidates for any requirement. Any major deviation causes wastage of resources to Clients, and a dent in the reputation of Talent Socio as well as the rest of its Talent Partner base. The Talent Partner shall ensure that not less than 70% (seventy percent) of the candidates submitted by the Talent Partner to a Client, on the basis of that Client's requirement, are suitable to pass the first level of screening by the Client, in accordance with the standard or specific screening policy of the Client.
- iv. **Timely and Accurate Communication:** The Talent Partner shall function as an interface between the Client and the candidate and shall be accountable to the Account Managers assigned by Talent Socio to oversee the transaction. The Talent Partner shall provide timely and accurate information to all parties and perform all such acts needed to ensure a smooth and efficient closure of the transaction, including but not limited to assistance with interview scheduling, offer negotiations and following up on the candidate till he/she joins the position with the Client. The Talent Partner acknowledges and agrees that all Candidate Information submitted through the Talent Partner Network is solely the responsibility of the Talent Partner until such information is directly confirmed or verified by the candidate. The Talent Partner warrants that the information provided to the Client shall be accurate to the best of its knowledge and shall undertake all reasonable efforts to ensure its authenticity. The Talent Partner shall indemnify, defend and hold harmless Talent Socio and/or the Client, as the case may be, from and against any and all claims, damages, obligations, losses, liabilities, costs (including attorney fees) arising from or in connection with any inaccuracy in the information of the candidate.
- v. **Professional Conduct:** The Talent Partner shall at all times adhere to a professional code of conduct in dealing with Clients, candidates and Talent Socio personnel, and shall not indulge in any indecent or unprofessional behaviour with either. In the event of any claim, loss and/or damage caused to Talent Socio and/or its Clients or other Talent Partners due to any misconduct, unprofessional behavior or breach of any do's and don'ts, as provided and updated by Talent Socio from time to time, the Talent Partner shall indemnify and keep indemnified Talent Socio with respect to any such claim, loss and/or damage.
- vi. **Bypassing the Talent Partner Network:** The Talent Partner shall not directly initiate communication with Talent Socio's Clients outside the Talent Partner Network without the prior written consent of Talent Socio. The Talent Partner shall not directly or indirectly solicit contact or engage with, or perform direct business transactions with, any Client introduced to the Talent Partner via the Talent Partner Network, or any of their employees, representatives, or affiliates, bypassing the commercial credit due to Talent Socio. The Talent Partner acknowledges and agrees that Talent Socio shall, at its own cost and expense, have the right to audit the data management systems, communication systems and/or financial transactions of the Talent Partner and related stakeholders, in order to identify such violations on a periodic basis, and may base the existence of such violation upon indicative information. Provided however that in case

of any adverse findings against the Talent Partner, the cost of such audit shall be borne by the Talent Partner. Further, the Talent Partner agrees to provide complete and unconditional cooperation to Talent Socio for the conduct of such periodic audits.

- vii. Confidentiality of Client and Stakeholder Information:** The Talent Partner acknowledges that, in the course of using the Talent Partner Network, it will have access to confidential and proprietary information relating to Clients, including without limitation the identity and contact details of Clients' hiring managers, business leaders and other stakeholders, organizational and reporting structures, compensation bands, and hiring plans ("Client Confidential Information"). The Talent Partner shall keep all Client Confidential Information strictly confidential at all times and shall use it solely for the purpose of fulfilling the requirement(s) allocated to or claimed by it. The Talent Partner shall not, under any circumstances, directly approach, contact or solicit any Client stakeholder (including any hiring manager or business leader), nor disclose, share or transfer any Client Confidential Information to any other person or entity, for any purpose whatsoever. Any breach of this Clause shall entitle Talent Socio to impose a penalty on the Talent Partner, in addition to any other rights and remedies available to Talent Socio under these Terms or applicable law, including but not limited to suspension or termination of the Talent Partner's access to the Talent Partner Network.
- viii. Confidentiality of Requirements:** The Talent Partner shall be obliged to maintain total confidentiality of the requirements of the Clients. The Talent Partner shall disclose such information to its employees/consultants only on a need-to-know basis, and shall take all measures to ensure that they or their team do not deliberately or inadvertently disclose such information to any other third party other than as required under these Terms. Further, the Talent Partner shall ensure that a Client's requirement is posted over any public medium, including but not limited to job sites, social media, or mass emails to candidates, only after masking the Client's name and salary details.
- ix. No Direct Client Engagement:** The Talent Partner is not authorized or permitted to connect, correspond or engage with any Client of Talent Socio directly — whether such Client was introduced to the Talent Partner via the Talent Partner Network or otherwise — for any purpose whatsoever, including without limitation (a) pursuing independent or direct business opportunities with such Client; (b) seeking or exchanging updates on the status of any candidate; or (c) any other commercial, professional or personal purpose, in each case without the prior written consent of Talent Socio.
- x. No Poaching and Headhunting at existing Clients:** The Talent Partner shall not directly or indirectly poach, solicit, head-hunt or attempt to influence any candidate employed or engaged by a Client (whether as an employee, consultant, advisor or distributor or in any other manner) through the Talent Partner, to terminate or otherwise cease such employment or engagement with the Client, or to become the employee of, or directly or indirectly offer services in any form or manner to, any third person including a competitor of the Client, for a period of 3 (three) years from the date of appointment of such candidate with the Client. Further, the Talent Partner shall not be permitted to directly head-hunt or solicit any other person employed or engaged by a Client (whether as an employee, consultant, advisor or distributor or in any other

manner) that may or may not have been placed at the Client through the Talent Partner.

- xi. Non-Solicitation:** During the term of any agreement between Talent Socio and the Talent Partner, and for a period of 24 (twenty-four) months thereafter, neither party shall directly or indirectly solicit for employment, hire, or engage as an independent contractor, any employee or contractor of the other party involved in the performance of services under the agreement, without the prior written consent of the other party.
- xii. No employment association:** Nothing in these Terms shall create or be deemed to create a partnership, or the relationship of a principal and agent, or employer and employee, between Talent Socio and the Talent Partner.
- xiii. Use of content:** The Talent Partner shall not take, copy or use for any purpose the name “Talent Socio”, “Talent Partner Network” or any of Talent Socio's other business names, trademarks, service marks, logos, trade dress, other identifiers or other intellectual property, or modified or altered versions of the same, without the prior written consent of Talent Socio.
- xiv. Non-Withdrawal of Submitted Resumes:** Once a candidate's resume is submitted through the Talent Partner Network, the Talent Partner shall not withdraw the submission unless explicit written authorization for such withdrawal is provided by the candidate whose profile is being withdrawn. Such authorization must be submitted to the Client and Talent Socio. Any unauthorized withdrawal of resumes may result in penalties, suspension, or termination of the Talent Partner's access to the Talent Partner Network, as deemed appropriate.
- xv. Performance Management:** The Talent Partner shall exercise due caution in discharging its services to Talent Socio and the Client. The Talent Partner shall be monitored by Talent Socio for the expectations stated in Clause 2(i) to (xiv) hereinabove, or any other additional expectations that shall be communicated to the Talent Partner by Talent Socio on a time-to-time basis. Talent Socio shall have the right to take a range of corrective and punitive actions for violation of any obligation or duty provided under these Terms by the Talent Partner, based on the nature of the violation. The primary actions might include, but are not limited to the following, whether applied individually or sequentially:
 - a. Warning:** A verbal or written warning issued to the Talent Partner. In case of repeat occurrences of violation by the Talent Partner, Talent Socio shall have the right to undertake a stronger action, as may be deemed suitable by Talent Socio.
 - b. Freezing and Restricted Operations:** Talent Socio shall have the authority to suspend the Talent Partner's ability to submit new candidates to requirements already accepted, together with the ability to accept, claim or opt in for any new requirements. Notwithstanding the foregoing, all candidates already under processing by a Client shall continue without impact, and the Talent Partner would be able to receive payments for them in due course. Further, the Talent

Partner shall provide Talent Socio with an undertaking, as and when requested, stating the corrective actions that would be undertaken to avoid any violations in the future. Talent Socio, at its sole discretion, may resume the account of a Talent Partner that may have been frozen at any point in time, and may impose any specific limitations required for its satisfaction that such violations are thoroughly avoided by the Talent Partner going forward.

- c. Termination for cause:** In cases of grave and repetitive violations of the performance management criteria listed in this Clause, Talent Socio may terminate the engagement with the Talent Partner with immediate effect vide a written notice. The Talent Partner shall continue to be entitled to receive any unpaid payment for transactions under process with Clients as of the date of such termination. Nothing shall restrict Talent Socio and/or the Client from initiating any legal action, as may be permitted by applicable law, against the Talent Partner in order to recover any financial damage caused to the business and reputation of Talent Socio and/or the Client.
- d.** During the subsistence of the Term or any other agreement between Talent Socio and the Talent Partner, the Talent Partner agrees not to solicit or contact any employee, Client, or customer of Talent Socio with a view to inducing or encouraging such employee, Client, or customer to discontinue or curtail any business relationship with Talent Socio.

3. Invoicing and Payment:

Talent Socio shall be responsible for making due payment to the Talent Partner after collecting the corresponding payment from its Clients. In relation to such payment, the following invoicing and payment terms and conditions shall be applicable to the Talent Partner:

- i. Condition for Invoicing:** All invoices from Talent Socio to the Client, and from the Talent Partner to Talent Socio, shall be raised post the basis of the successful joining of the candidate with the Client. In case of contractual hiring, payment to the Talent Partner shall only be made after receiving a copy of the timesheet as approved by the Client. Amount of Invoicing shall be shared by the account manager or updated in the talent partner network.
- ii. Possible Payout Amount:** Each job/requirement posted on the Talent Partner Network shall specify a “Possible Payout Amount”, being a percentage of the candidate's CTC (Cost to Company) — calculated with reference to the fixed salary component only, and excluding any retiral benefits (including but not limited to provident fund, gratuity, or other statutory retiral contributions) — payable to the Talent Partner upon the successful joining of the candidate with the Client and completion of the applicable Replacement Period referred to in Clause 3(iii) below.
- iii. Replacement Period:** Every candidate placed by a Talent Partner shall be required to successfully complete a minimum continuous period of 90 (ninety) days of service with the Client from the date of joining (“Replacement Period”), for the Possible Payout Amount to become due and payable to the Talent Partner. Provided that, for certain roles — typically at the mid-to-leadership level — the Replacement Period may be

extended up to 180 (one hundred and eighty) days, as may be determined by, and in accordance with, the specific commercial agreement between Talent Socio and the concerned Client. The applicable Replacement Period for each requirement shall be specified on the Talent Partner Network at the time of posting or allocation of that requirement, and the Talent Partner's claiming of, acceptance of, or agreement to work on such requirement shall constitute the Talent Partner's acceptance of the Replacement Period applicable to it.

- iv. Repayment on Early Exit:** In the event that a candidate placed by a Talent Partner does not successfully complete the applicable Replacement Period with the Client, and Talent Socio has already disbursed the Possible Payout Amount (or any part thereof) to the Talent Partner in respect of such candidate prior to completion of the Replacement Period, the Talent Partner shall be liable and obligated to refund such amount to Talent Socio Bizcon LLP in full, within such time period as may be intimated by Talent Socio. Talent Socio shall additionally be entitled to adjust or set off such amount against any other payment(s) due to the Talent Partner under these Terms.
- v. Taxes:** The charges to be paid by Talent Socio to the Talent Partner are exclusive of all taxes (central and state both) including Goods and Service Tax (GST) (unless otherwise agreed specifically in writing hereunder), which shall be as applicable from time to time and shall be subject to deduction of tax at source (TDS) as may be applicable under the applicable laws. Talent Socio shall pay the Talent Partner any taxes properly chargeable on services supplied by the Talent Partner pursuant to these Terms, provided the Talent Partner has delivered a valid tax invoice as required under applicable law. In no event shall Talent Socio become liable for any penalties or interest due on such taxes.
- vi. No Liabilities:** For the avoidance of doubt, Talent Socio shall not be liable for any taxes based upon the Talent Partner's net income, or any tax payments and filings in relation to the Talent Partner's own employees or sub-contractors that it may use in the provision of services under these Terms.
- vii. No Implied Fees:** The Talent Partner shall not be entitled to any payment other than the Possible Payout Amount and any other charges specified by Talent Socio from time to time in relation to the provision of services and the conducting of the Talent Partner's obligations under these Terms, and unless specified by Talent Socio, such charges shall be inclusive of all out-of-pocket expenses which may be incurred by the Talent Partner in connection with the provision of services, including travel and subsistence expenses.
- viii. Payment Term:** The charges due to the Talent Partner under these Terms shall be payable by Talent Socio at the end of the payment term specified for that job, and post completion of the applicable Replacement Period (whichever is later). The Talent Partner shall raise a correct, undisputed, and properly due invoice which shall state, as a minimum:

 - a.** a brief description of the relevant services performed, along with reports which will form the basis of the services provided by the Talent Partner;

- b.** the period to which the invoice relates; and
 - c.** all charges and applicable taxes.
- ix. Invoice Verification:** Talent Socio shall be entitled to verify the reports provided by the Talent Partner and the invoices submitted by it, and may enquire and have its queries clarified by the Talent Partner. In case the Talent Partner fails to clarify such queries within reasonable time in respect of an invoice, Talent Socio may, at its discretion, withhold payment of the entire compensation pertaining to such invoice, or part thereof, till its queries are satisfied.
- x. Invoicing Details:** For the purposes of transparency, the offer amount as agreed on the joining date of the candidate, and the joining confirmation of the candidate, shall be shared by the Client with Talent Socio, and correspondingly intimated to the Talent Partner. Upon receipt of such confirmation, Talent Socio shall intimate the Talent Partner of the invoice date and the amount payable in the applicable currency. In case the currency associated with the salary, the Talent Socio invoice to the Client and the Talent Partner's invoice are not the same, Talent Socio shall intimate the exact amount payable for the Talent Partner's invoice, based on the exchange rate it receives from the Client and its bank, as determined by Talent Socio.
- xi. Payment upon Receipt from Client:** Talent Socio Bizcon LLP shall make payouts to the Talent Partner only upon and to the extent of successful receipt of the corresponding payment from the concerned Client. Talent Socio's obligation to pay the Talent Partner is contingent upon, and limited to, amounts actually received by Talent Socio from the Client in respect of the relevant candidate placement.
- xii. Payment Adjustments:** Talent Socio shall be entitled to adjust the payment to be made to the Talent Partner under these Terms against any amount due to Talent Socio, including for breach of these Terms, misappropriation, fraud, negligence, or any amount payable under Clause 3(iv) above.
- xiii. Acceptance of Service:** The Talent Partner acknowledges that payment by Talent Socio of any invoices due shall not be deemed to constitute an acceptance of the services and is without prejudice to any representations or warranties made by the Talent Partner.
- xiv. Dispute Resolution:** If Talent Socio has a bona fide dispute in relation to the whole or any part of an invoice submitted by the Talent Partner, Talent Socio may withhold payment of the amount in dispute, provided that Talent Socio continues to pay the undisputed amount when it becomes due and payable in accordance with these Terms. Either Party may refer the dispute to the dispute resolution procedure set out in Clause 15. Where such a dispute arises, Talent Socio shall notify the Talent Partner of the amount in dispute and the nature of the dispute.

4. Privacy:

- i. Personal Information:** The Talent Partner shall ensure that all personal information with regard to a candidate has been obtained after obtaining all due consents from the

owner of such data, and that the candidate is aware of and has agreed to the same being shared with Talent Socio and the Client.

- ii. All personal information of candidates that is collected, used or disclosed by the Parties for the purposes of, or in connection with, these Terms shall be treated in a confidential manner, and each Party shall, in collecting, using and/or disclosing any such personal information, comply with all applicable data protection laws, as well as with the terms set out in the data processing terms shared with the Talent Partner (“Talent Socio Data Processing Annexure”).
- iii. **Liability:** The Talent Partner shall be solely responsible and liable in respect of any liability/claims/losses/damages arising out of non-compliance with any applicable privacy laws with regard to the data shared by the Talent Partner.

5. Indemnity:

The Talent Partner shall indemnify and keep indemnified other members, Clients and Talent Socio with respect to any claims/losses/damages caused to Talent Socio and/or its members due to any breach/non-fulfilment of the Talent Partner's obligations under these Terms and other policies or codes laid down by Talent Socio from time to time.

6. Other Terms and Conditions:

- i. Talent Socio operates a talent partner network where Clients choose to share their requirements and close transactions at their own discretion. While Talent Socio makes every effort to maximize transaction closures, Talent Socio does not have total control over the same. Talent Socio does not make any explicit or implicit commitment to the Talent Partners about any specific revenue targets that could be achieved by the Talent Partners in the future through their transactions on the Talent Partner Network. The Talent Partner acknowledges that any investment or expenses made by it in its business are at its own risk and shall not hold Talent Socio accountable in any form for any shortfall against its internal expectations.
- ii. The Talent Partner shall be responsible to pay its respective taxes as per the individual laws applicable to it.

7. Representations and Warranties:

The Talent Partner hereby represents and warrants to Talent Socio the following:

- i. The Talent Partner warrants that it has the full right and power to enter into and abide by these Terms, and that there are no conflicting agreements entered into by the Talent Partner in violation of any principal terms hereof. The Talent Partner is capable of entering into independent legal contracts with third parties and capable of performing the terms of such contracts without any restrictions;
- ii. The Talent Partner has all the requisite consents, licenses, and permissions to: (a) enter into these Terms; and (b) conduct the obligations set out in these Terms, and it shall keep all such consents, licenses and permissions renewed and valid at all times during the continuance of these Terms;

- iii. The Talent Partner represents and warrants that it will not be in violation of any laws applicable to members, or in non-compliance with any obligations under any existing or future contracts entered into by the Talent Partner;
- iv. The Talent Partner agrees that it shall not attempt to access any information/database created by Talent Socio in an unauthorized manner;
- v. The Talent Partner agrees to fully abide by these Terms for the entire term to its fullest extent, including any rules/policies of Talent Socio as updated from time to time;
- vi. The Talent Partner warrants that the services rendered hereunder shall not violate any law, rule, regulation or order of any government or authority, nor be inconsistent with any instrument and/or document executed by the Talent Partner or to which the Talent Partner is a party, whether directly or indirectly;
- vii. The Talent Partner represents that it is in compliance with all local laws, including privacy and data protection laws, intellectual property laws, etc., applicable to it while sharing third-party information, i.e., of the candidate or the Client, as the case may be;
- viii. The Talent Partner represents and warrants that it has the necessary infrastructure, equipped with amenities and facilities (including well-trained staff/employees), as may be required for conducting its obligations under these Terms;
- ix. The Talent Partner represents and warrants that the services will be performed with all reasonable skill and care and in accordance with good industry practice;
- x. The Talent Partner represents that there are no hidden costs or charges to be incurred by Talent Socio for availing the Services, other than the charges stated by Talent Socio;
- xi. The Talent Partner represents and warrants that there are no actions, suits, proceedings or regulatory investigations pending, or, to its knowledge, threatened against or affecting it before any court, administrative body or arbitration tribunal, that might affect its ability to meet and conduct its obligations under these Terms;
- xii. The Talent Partner agrees and acknowledges that it has in its possession all relevant documents/authorizations to support the representations and warranties herein, which shall be provided to Talent Socio as and when required; and
- xiii. The Talent Partner understands that the Talent Partner Network is not an exchange for job seekers, and it shall not, under any circumstances, send its own profile for any job posted on the Talent Partner Network. The jobs on the Talent Partner Network are meant to be accessed by Talent Partners to source profiles of candidates.

8. Confidentiality:

The Talent Partner shall be bound by terms of confidentiality with respect to the information available to it in its capacity as a member of the Talent Partner Network, and no disclosure is to be made in this regard to any third party not specifically authorized by Talent Socio.

9. Termination for convenience:

Either Party may terminate its relationship with the other Party at any time by sending an email to the other Party intimating its intention to terminate the relationship, prior to 30 (thirty) days from the date of such termination. However, all existing rights and obligations of the Talent Partner and Talent Socio with respect to any transactions existing prior to such termination shall survive such termination/expiration of membership. It is hereby clarified that for any candidates whose profiles have been shared by the Talent Partner with a Client, and for whom the recruitment process is ongoing as of the date of receipt of the termination notice, the Talent Partner shall remain obligated to fulfil its responsibilities pertaining to the recruitment of such candidates, notwithstanding the termination of the relationship between the Parties.

10. Taxes:

All Talent Partners shall be responsible for paying their respective taxes as per their individual laws applicable to them.

11. Assignment:

Talent Socio retains the right to assign all its rights to a third party at its own discretion, without any recourse to the Talent Partners.

12. Details supplied to Talent Socio or Clients:

- i. The Talent Partner shall ensure that it has all the rights in the details and documents of candidates ("Candidate Information") which it supplies to Talent Socio or a Client, and agrees to grant Talent Socio a non-exclusive, worldwide, perpetual, irrevocable, royalty-free, sub-licensable (through multiple tiers) right to exercise the copyright, publicity, database rights or any other rights the Talent Partner has in the Candidate Information. The Talent Partner passes the same rights to Talent Socio so that Talent Socio is not violating any rights of candidates while rendering the Services. Talent Socio shall be entitled to use the Candidate Information, and the Talent Partner shall ensure that candidates do not demand any payment or compensation for such use.
- ii. Talent Socio shall have the right, but no obligation, to monitor, store or review the Candidate Information supplied to Talent Socio/a Client.
- iii. Talent Socio reserves the right to remove or edit any content from the Talent Partner Network that, in its sole discretion, violates or is alleged to violate any applicable law or the spirit or letter of these Terms.
- iv. Notwithstanding anything contained herein, **THE TALENT PARTNER REMAINS SOLELY RESPONSIBLE FOR THE CONTENT OF THE CANDIDATE INFORMATION THAT THE TALENT PARTNER POSTS ON THE TALENT PARTNER NETWORK.**
- v. Talent Socio disclaims any responsibility for any harm resulting from downloading or accessing any information or material on the internet through the Talent Partner Network.

13. Disclaimers:

- i.** The Talent Partner Network and Services provide Talent Partners an electronic web-based platform which can be used by them as per these Terms. In this regard, Talent Socio does not guarantee, represent or warrant to the Talent Partners that:
 - a.** use of the Talent Partner Network will be uninterrupted, timely, secure or error-free;
 - b.** there is conformity with the conditions of merchantability, merchantable quality, fitness for a particular purpose, durability, title, and non-infringement;
 - c.** of the quality of service obtained through the use of the Services.
- ii.** The Talent Partner understands and agrees that it is availing the Services at its own discretion and risk, and that it shall be solely responsible for any damage(s) and/or cost(s) and/or any other consequence(s) resulting from the Services.
- iii.** The Talent Partner Network shall not be liable to any person in connection with any damage suffered by any person as a result of any Talent Partner's conduct.
- iv.** Talent Socio neither offers a guarantee nor warranties that there would be a satisfactory response, or any response at all, once a candidate's profile is sent to a Client.
- v.** Sending a candidate's details to any Client does not in any manner guarantee the selection of such candidate for any opening.
- vi.** Talent Socio does not make any representations about the suitability, reliability, availability, timeliness, and accuracy in relation to the opportunities posted on the Talent Partner Network by Clients. All opportunities are provided "as is" without warranty of any kind. Talent Socio hereby disclaims all warranties and conditions with regard to the opportunities. Talent Socio shall not be responsible or liable for any consequential damages arising therefrom.
- vii.** Talent Socio shall in no way be held liable for any information received by the Talent Partners in relation to any opportunity from a Client, and it shall be the sole responsibility of the Talent Partners to check, authenticate and verify the information/response received, at their own cost and expense.
- viii.** Talent Socio does not make any representations or warranties with respect to its Clients.
- ix.** Talent Socio is not responsible for the practices employed by Clients or their services. Talent Socio's scope of activity is limited to engaging Talent Partners with Clients under the Services, and further activities of Talent Partners will be subject to that Client's own rules, policies, and practices.
- x.** The Talent Partner agrees that responsibility for any act or omission arising from the Talent Partner's interpretation of any content on the Talent Partner Network is solely attributable to the Talent Partner. The Talent Partner agrees to absolve Talent Socio from, and indemnify Talent Socio against, all claims that may arise as a result of the

Talent Partner's actions resulting from its use of the Talent Partner Network or viewing of content thereon.

- xi. THE TALENT PARTNER NETWORK AND SERVICES, AND ALL MATERIALS, INFORMATION AND SERVICES INCLUDED THEREIN, ARE PROVIDED “AS IS,” WITH NO WARRANTIES WHATSOEVER.**
- xii. TALENT SOCIO AND ITS LICENSORS EXPRESSLY DISCLAIM, TO THE FULLEST EXTENT PERMITTED BY LAW, ALL EXPRESS, IMPLIED, AND STATUTORY WARRANTIES, INCLUDING, WITHOUT LIMITATION, THE WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT OF PROPRIETARY RIGHTS. TALENT SOCIO AND ITS LICENSORS DISCLAIM ANY WARRANTIES REGARDING THE SECURITY, RELIABILITY, TIMELINESS, AND PERFORMANCE OF THE TALENT PARTNER NETWORK AND SERVICES. TALENT SOCIO DISCLAIMS ANY WARRANTIES FOR ANY SERVICE OBTAINED THROUGH THE TALENT PARTNER NETWORK. TALENT SOCIO AND ITS LICENSORS DISCLAIM ANY WARRANTIES FOR SERVICES ADVERTISED ON THE TALENT PARTNER NETWORK OR RECEIVED THROUGH ANY LINKS PROVIDED BY THE TALENT PARTNER NETWORK, AS WELL AS FOR ANY INFORMATION OR ADVICE RECEIVED THROUGH ANY SUCH LINKS.**
- xiii. THE TALENT PARTNER UNDERSTANDS AND AGREES THAT IT USES THE TALENT PARTNER NETWORK AND SERVICES AT ITS OWN DISCRETION AND RISK, AND THAT IT WILL BE SOLELY RESPONSIBLE FOR ANY DAMAGE TO ITS COMPUTER SYSTEM OR LOSS OF DATA THAT RESULTS FROM THE DOWNLOAD OF ANY MATERIAL OR DATA.**
- xiv. Some states or other jurisdictions do not allow the exclusion of implied warranties, so the above exclusions may not apply to the Talent Partner. The Talent Partner may also have other rights that vary from state to state and jurisdiction to jurisdiction.**

14. Intellectual Property Rights:

All intellectual property rights created by Talent Socio in furtherance of its objectives shall vest with Talent Socio.

15. Dispute resolution:

- i. Disputes between Clients and Talent Partners shall be subject to the respective laws governing the Clients and Talent Partners, and shall be resolved amicably. Talent Socio shall mediate disputes between members, if required. No claims shall be raised by any member against any other member before any court/tribunal/arbitrator/governmental authority without informing Talent Socio of the same.**
- ii. Disputes between Talent Partners and Talent Socio shall be subject to arbitration by a sole arbitrator under the Arbitration and Conciliation Act, 1996, with the seat of arbitration in Bangalore, and the laws governing these Terms being Indian laws. The**

language of arbitration shall be English, and the award of the arbitrator shall be final and binding on the concerned parties.

16. Updates to Terms:

Talent Socio reserves the right to update these Terms from time to time at its sole discretion. Although Talent Socio shall use reasonable effort to notify the Talent Partner of any material change(s) made to the terms of membership or by-laws by means of electronic mail, it is the responsibility of members to keep themselves informed of the membership terms and by-laws. If the Talent Partner does not raise objections or terminate its membership in writing within 1 (one) month of any such change(s), the Talent Partner shall be deemed to have accepted the modified terms of membership and/or by-laws and shall adhere to the same.

17. Term:

These Terms between the Talent Partner and Talent Socio shall remain in force until revised by Talent Socio Bizcon LLP or terminated by either Party with written notice.